2024 Y L R 2680

[Lahore]

Before Ch. Muhammad Iqbal, J

DAWOOD AHMAD through Special Attorney---Petitioner

Versus

ADDITIONAL DISTRICT JUDGE, LAHORE and another---Respondents

Writ Petition No. 231109 of 2018, heard on 22nd December, 2023.

Family Courts Act (XXXV of 1964)---

----S. 5 & Sched.---Muslim Family Laws Ordinance (VIII of 1961), S.7---Husband's right to divorce unconditional---Wife instituted a suit for recovery of gold as per the alleged condition imposed for pronouncement of divorce in Nikahnama---Husband filed objection in the suit and also an application under O.VII R.11, C.P.C., for rejection of plaint contending that the plaint was being barred by law as no clog could be imposed upon the right of a husband to pronounce divorce---Validity---Under S.7 of the Muslim Family Laws Ordinance, 1961, a husband is authorized or is at liberty to pronounce Talaq to his wife and it is nowhere mentioned therein that such power/right of a husband regarding pronouncing of Talaq to his wife can be stipulated with the condition to pay a specific penalty or amount in shape of gold---Petitioner had an uncovenanted right to pronounce divorce if he so desired and placing of clog in the said right was against the principles of Islamic Law---Holy Quran and Sunnah as well as provisions of S.105 of the Code of Musim Personal Law written by Dr. Tanzeel-ur-Rehmar and S.7 of the Ordinance empowers a husband with an absolute right to divorce his wife and in this regard no condition is described in at Sharia as well as in the codified law---Duty of Court is firstly to decide the maintainability of the suit as per law and if suit is not maintainable then the proceedings of suit shall be set at rest infinitum as such like cases should be burried at the inception to save the precious time of the Courts and public---Constitutional petition was allowed accordingly and concurrent finding of lower courts were reversed while accepting application of the petitioner for rejection of plaint.

Muhammad Sajjad v. Additional District Judge, Jalapur Pirwala, District Multan and 2 others 2022 CLC 729; Muhammad Bashir Ali Siddiqui v. Mst. Sarwar Jahan Begum and another 2008 SCMR 186; Mst. Zeenat Bibi v. Muhammad Hayat and 2 others 2012 CLC 837; Muhammad Asif v. Mst. Nazia Riasat and 2 others 2018 CLC 1844; Syed Mukhtar Hussain Shah v. Mst. Saba Imtiaz and others PLD 2011 SC 260; Mujahid Kamran v. Mst. Saira Aziz and 2 others 2022 CLC 24; Hasan Chanea v. Mi Sin [U.B.R (1915), II, 53; Rukhsana Ambreen v. District and Sessions Judge, Khushab and 2 others 2021 CLC 1512; S.M. Shafi Ahmad Zaidi through Legal Heirs v. Malik Hassan Ali Khan (Moin) through Legal Heirs 2002 SCMR 338; Haji Farman Ullah v. Latif-ur-Rehman 2015 SCMR 1708 and Nazim-ud-Din and others v. Sheikh Zia-ul-Qamar and others 2016 SCMR 24 rel.

Shahid Mahmood Minhas for the Petitioner.

Muhammad Tariq Malik for Respondent No. 2.

Date of hearing: 22nd December, 2023.

JUDGMENT

CH. MUHAMMAD IQBAL, J.---Brief facts of the case are that respondent No.2 /plaintiff filed a suit for recovery of 300-tolas gold or in alternate the amount of the same against the petitioner/ defendant contending therein that her marriage was solemnized with the petitioner on 21.10.2001. Out of this wedlock, minor namely Ibrahim was born who is in the custody of respondent No. 2. At the time of marriage dower was fixed Rs.10,00,000/-, out of which Rs.20,000/- was paid at the time of marriage and Rs.9,80,000/- is still payable and the pocket money was also fixed Rs.30,000/- per month. Petitioner/ defendant divorced the plaintiff on 30.07.2011 and as per clause 19 of Nikahnama plaintiff prayed for recovery of 300-tolas gold or in alternate its price.

Petitioner/ defendant contested the suit by filing written statement and raised many objections and preliminary objection No.4 was qua rejection of the plaint being barred by law, clause No.19 of the Nikah Nama is void condition and suit is not maintainable. Petitioner also filed an application under Order VII Rule 11, C.P.C. for rejection of the plaint. The said application was contested by respondent No.2/plaintiff which was dismissed by the trial court vide order dated 20.07.2017. Against the said order, the petitioner filed revision petition which was dismissed by the revisional court vide order dated 03.05.2018. Hence, this writ petition.

2. Learned counsel for the petitioner submits that clause 19 of Nikah Nama is against the injunctions of Islam as no condition can be imposed in the Nikah Nama regarding pronouncement of divorce. Moreover, respondent No.2/ plaintiff filed suit for recovery only on the basis of column No. 19 of Nikah Nama whereas imposition of condition is illegal thus no proceedings can be initiated in this regard. Petitioner filed an application for rejection of plaint as the suit was barred by law and also to save the precious time of the court as the further proceedings of the said suit is tantamounted abuse process of law.

3. Learned counsel for respondent No. 2 submits that the matter should be decided after recording of evidence, as such both orders were rightly passed.

4. I have heard the learned counsel for the parties and gone through the record.

5. Admittedly, marriage of the parties was solemnized on 21.10.2001. In column No. 19 of the Nikah Nama it is written as under:-

The legality and validity of the above condition is in controversy between the parties. As per contents of the plaint, respondent No.2 demanded 300-tolas gold as mentioned in clause 19 of the Nikah Nama in lieu of divorce given by the petitioner. Under Section 7 of The Muslim Family Laws Ordinance, 1961, a husband is authorized or is at liberty to pronounce Talaq to his wife. In the above provision of law, it is nowhere mentioned that such power/right of a husband regarding pronouncing of Talaq to his wife can be stipulated with the condition to pay a specific penalty or amount in shape of gold. As per Section 7 of the Ordinance ibid the petitioner has an uncovenanted right to pronounce divorce if so desire and placing of clog in the said right, is against the principles of Islamic Law. This question has already been resolved by this Court[1] by holding that "The respondent/plaintiff has contended that at the time of registration of Nikah, it was mentioned in the Clause 19 that in case the petitioner/defendant divorces the respondent/plaintiff he will pay an amount of Rs.500,000/. With regard to imposition of clog on the right of a husband qua pronouncing divorce, Allah Almighty in Holy Qur'an has delegated uncovenanted powers to the husband to pronounce Talaq to his wife in order to avoid any transgression of Islamic bounds. In this regard I seek guidance from Ayat Nos.227-228 of Surah Baqarah, which is as under:

227. But if their intention Is firm for divorce, Allah heareth, And knoweth all things. 228. Divorced women Shall wait concerning themselves For three monthly periods. Nor is it lawful for them To hide what Allah Hath created in their wombs, If they have faith In Allah and the Last Day. And their husbands Have the better right To take them back In that period, if They wish for reconciliation.	

And women shall have rights Similar to the rights Against them, according To what is equitable; But men have a degree (Of advantage) over them. And Allah is Exalted in Power, Wise. (translation by Abdullah Yusuf Ali)	

Further in 01st Ayat of Surah At-Talaq, Allah Almighty says as under:-

O Prophet! when ye Do divorce women, Divorce them at their Prescribed periods, And count (accurately) their prescribed periods: And fear Allah Your Lord: And turn them not out Of their houses, nor shall They (themselves) leave, Except in case they are Guilty of some open lewdness. Those are limits Set by Allah: and any Who trans gresses the limits of Allah, does verily Wrong his (own soul: Thou knowest not if Perchance Allah will Bring about thereafter Some new situation. (translation by Abdullah Yusuf Ali)	

Further guidance in this regard can be taken from the Sunnah of Holy Prophet from hadith No. 235 of Bukhari Sharif, which h reads as under:-

Section 105 Chapter XII of the Code of Muslim Personal Law (written by Dr. Tanzil-ur-Rehman, Ex-Judge of Sindh High Court Volume 1) the Delegation of right of Divorce (Tafwid at-Talaq) is described which is reproduced as under: -

Delegation of the right of divorce: It is lawful for the husband to delegate to the wife the right of effecting divorce. In that event, however, his own right of effecting divorce shall not lapse.

Even otherwise, Section 7 (1) of the Muslim Family Laws Ordinance, 1961 deals with Talaq, which is reproduced as under:-

"S. 7 `Talaq'. (1) Any man who wishes to divorce his wife shall, as soon as may be after the pronouncement of talaq in any form whatsoever, give the Chairman notice in writing of his having done so, and shall supply a copy thereof to the wife."

5. From the perusal of afore-mentioned glorious references of Holy Quran and Sunnah as well as provisions of Section 105 of the Code of Muslim Personal Law written by Dr. Tanzeel-ur-Rehman and Section 7 of the Muslim Family Laws Ordinance, 1961, a husband has an absolute right to divorce his wife and in this regard no condition is described in the Sharia as well as in the Codified law. In this regard, the Hon'ble Supreme Court of Pakistan in the case reported as Muhammad Bashir Ali Siddiqui v. Mst. Sarwar Jahan Begum and another (2008 SCMR 186) has also declared that the condition/restriction on the right of a husband to divorce his wife, is illegal. The condition if any imposed in the Nikahnama for the award of damages on account of alleged unjustified divorce is against the basic principle of Islamic Law. The husband has a right to divorce his wife from his free will and no condition can be imposed in this regard. Reliance can also be placed on the cases titled as Mst. Zeenat Bibi v. Muhammad Hayat and 2 others (2012 CLC 837) and Muhammad Asif v. Mst. Nazia Riasat and 2 others (2018 CLC 1844)."

In a similar case, a lady filed suit for recovery of Rs.10,00,000/- on the basis of an entry in the Nikah Nama as well as also on the basis of agreement between the parties that in case of divorce, the husband shall pay rupees one million (Rs.10,00,000/-) to her. The Family Court decreed the suit and said judgment was upheld by this Court, however, the Hon'ble Supreme Court of Pakistan allowed the appeal[2] and set aside the judgments of the lower fora holding the power of a husband to pronounce divorce as unstipulated. This Court has also held in a case[3] that any condition contained in Nikahnama against the principles of Islam or Shariah is not binding upon the parties even if it has been made with the consent of the parties. In Hasan Chanea's case[4] it was also held that a husband has an absolute right/power to divorce his wife and no condition can be imposed on exercising such right. Further reliance is made to Rukhsana Ambreen's cases[5]. Mr. Aziz Ahmad in Para No. 238 of his great book "Islamic Law in Theory and Practice" [foreword by Hon'ble Mr. Justice S.A. Rahman, former Chief Justice of West Pakistan] has also observed that a Muslim who is a major and has a sound mind may divorce his wife under the Muslim Law at any time without assigning any reason.

6. Learned counsel for respondent No.2 has raised objection that the application for rejection of plaint is not maintainable, as the provisions of C.P.C. are not applicable in family matters, thus the suit cannot be dismissed under above provisions rather the proceedings of the Family Courts are governed by the general principle of equity, justice and fair-play, suffice it to say that it is the duty of the Court firstly to decide the

maintainability of the suit as per law and if suit is not maintainable then the proceedings of suit shall be set at rest infinitum as it is settled law that such like cases should be burried in the inception to save the precious time of the Courts and public[6]. As such the objection of learned counsel for respondent No. 2 is without any force and same is hereby repelled.

7. As discussed above, the decisions of the Courts below suffer from mis-application of law, as such, the same are not sustainable in the eyes of law and are liable to be set-aside and this Court is well within jurisdiction to reverse the illegal and perverse concurrent findings.[7]

8. In view of above, this writ petition is allowed. Order dated 20.07.2017 passed by the learned Civil Judge, Lahore and order dated 03.05.2018 passed by the learned Additional District Judge, Lahore are hereby set aside and application filed by the petitioner/defendant for rejection of plaint of respondent/plaintiff is accepted. Consequently, the plaint filed by the respondent/plaintiff is hereby rejected under Order VII Rule II, C.P.C. No order as to costs.

SA/D-2/L Petition allowed.

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